

26PR00619 Limited Conservatorship of Henry Patrick Hegardt

County: sonoma

Division: Probate

Hearing date: 2027-09-09

Motion: Appointment of Conservator

Source URL:

<https://sonoma.courts.ca.gov/online-services/tentative-rulings/probate-tentative-rulings/limited-conservatorship-calendar>

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Limited Conservatorship of Henry Patrick Hegardt

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Appointment of Conservator

Tentative Ruling: NO APPEARANCES REQUIRED. The Court cannot reach the merits of the petition until notice required under the law has been provided. That includes notice to the father and any adult siblings of the proposed conservatee. "At least 15 days before the hearing on the petition for appointment of a conservator, notice of the time and place of the hearing shall be given as provided in this section. The notice shall be accompanied by a copy of the petition. The court shall not shorten the time for giving the notice of hearing under this section." Probate Code section 1822(a). There is presently no proof that the father or any adult siblings have been served with timely notice of the present hearing or a copy of the petition. The Court therefore can only continue this matter again until that proof of service is filed. If petitioner did serve the father and any adult siblings at least 15 days before the hearing and has proof of that service, or a waiver of notice and consent from the father and any adult siblings, she should file proof of service, or the waiver(s) of notice and consent, and request to appear for the purpose of presenting it to the Court. In that case, and in the absence of an objection, the Court is inclined to grant the petition. Otherwise, the matter is CONTINUED to Thursday, October 1, 2026, at 3:30 p.m. in Department 63. Petitioner shall file and serve a new notice of hearing with the new hearing date and file proof of its timely service, including the petition, in accordance with the law.